

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 15-014

Chickasaw Nation Indian Housing Plan Certification of Compliance

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature named the Chickasaw Nation Division of Housing as the Tribally Designated Housing Entity (the "TDHE") pursuant to the Native American Housing Assistance and Self Determination Act of 1996 ("NAHASDA"); and

WHEREAS, NAHASDA requires a tribal certification regarding its Indian Housing Plan.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature, in accordance with the applicable statutes, hereby certifies that:

- A. it will comply with title II of the Civil Rights Act of 1968 in carrying out this Act, to the extent that such title is applicable, and other applicable federal statutes;
- B. it will maintain adequate insurance coverage for housing units that are owned and operated or assisted with grant amounts provided under NAHASDA, in compliance with such requirements as may be established by the Secretary;
- C. policies are in effect and are available for review by the Secretary and the public governing the eligibility, admission and occupancy of families for housing assisted with grant amounts provided under NAHASDA;
- D. policies are in effect and are available for review by the Secretary and the public governing rents charged, including the methods by which such rents or homebuyer payments are determined for housing assisted with grant amounts provided under NAHASDA; and
- E. policies are in effect and are available for review by the Secretary and the public governing the management and maintenance of housing assisted with grant amounts provided under NAHASDA.

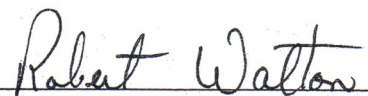
BE IT FURTHER RESOLVED, that the Governor of the Chickasaw Nation, as chief executive officer of the Chickasaw Nation, is hereby authorized to consent to, and by signing in concurrence to this Resolution hereby does consent to, the following:

F. that the Governor of the Chickasaw Nation consents to assume the status of a responsible federal official under the National Environmental Policy Act of 1969 and the other provisions of law listed in 24 CFR 58.5 insofar as the provisions of NAHASDA and such other provisions of law apply to the Chickasaw Nation's proposed program pursuant to 24 CFR part 58; and

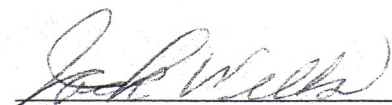
G. that the Governor of the Chickasaw Nation consents on behalf of himself and the Chickasaw Nation to accept the jurisdiction of the federal courts for the purpose of enforcement of his responsibilities as such an official.

BE IT FURTHER RESOLVED, that this Permanent Resolution Number 15-014 replaces Permanent Resolution Number 14-017.

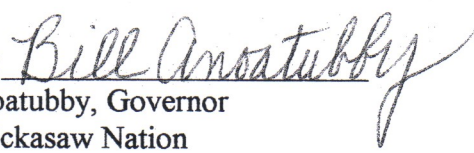
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 17, 1998, by a vote of 11 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 17 1998

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 15-014 Certification of Compliance - Indian Housing Plan

Explanation: NAHASDA requires that, when an Indian Housing Plan is submitted by a TDHE on behalf of a tribe, the tribal government certify to certain matters. This resolution provides the required certification and replaces Permanent Resolution Number 14-017.

Requested by: Bill Anoatubby, Governor

Presented by: Jack Wells, Chairman
Land Committee